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WPA Financial Fraud Report

> This report details financial fraud committed against Windward Patio Association (WPA) homeowners by the WPA board, its property management company, Grande Property Services (GPS) and Juniper Landscaping.

Homeowners Association (HOA)

- **Windward Patio Association, Inc. (WPA)**
- 3754 Cape Haze Drive, Rotonda West, FL 33947 : (941) 697-9722

Property Management Company (PMC)

- **Grande Property Services, Inc. (GPS)**
- 3754 Cape Haze Drive, Rotonda West, FL 33947 : (941) 697-9722

Lawn Care Service (LCS)

- **Landscape Maintenance Professionals, Inc. (LMP)**
- P.O. Box 267, Seiner, FL 31583 : (813) 757-6500
- **Juniper Landscaping**
- 4415 Metro Parkway, Suite 300, Fort Myers, FL 33916 : (239) 561-5980

> Juniper acquired LMP in 2024.

LCS Review

> Based on numerous customer reports as of **May 2026**, Juniper Landscaping in Fort Myers has severe issues with service quality, including killing plants with over-spraying, damaging property, and failing to address customer concerns, leading to an extremely poor reputation among residents and HOAs.

- **Significant Damages & Negligence**: Complaints include damaging property with equipment, such as ruining hurricane-impact doors, breaking sprinkler systems, and driving over irrigation downspouts.
- **Poor Lawn Maintenance**: Reports indicate dying grass, high weed infestation, and failure to clean up after services.

- **Irresponsible Chemical Application**: Multiple, recent reports allege that the company kills plants, shrubs, and flowers by misapplying, or over-applying, weed killer.
- **No Accountability/Communication**: Customers report being ignored by management, and complaints filed through their app are often closed without resolution.
- **HOA Issues**: Several HOAs have terminated or were advised to fire them due to poor performance.

> Customers are frequently describing Juniper as the ***worst*** company and warn to avoid them.

> (Source: Google AI)

LCS Contracts

- 2024-2025 LMP Contract
- 2026 Juniper Contract

> Contracts available in evidence package.

> The 2026 contract was signed on 2025.12.22. However, it was not posted to the WPA website until 2026.4.15. On 2026.3.23, GPS was asked, via email, if a new contract existed. GPS gave a ***no*** reply to said question. Not until 2026.4.15 was this homeowner made aware of the 2026 contract.

> Questions about anomalies in the 2026 contract were submitted to GPS on 2026.4.16, with no answers to date. As of 2026.5.15, GPS maintains it is waiting for clarification from Juniper on 2026 contract anomalies. As a signatory on the 2026 contract, how can GPS not understand the details of said contract?

> The WPA board and GPS have cited the purported lack of WPA homeowner complaints as a sign that Juniper is doing a good job. Despite several homeowner complaints, with some homeowners even joining the WPA board and failing to correct issues with LMP and Juniper, the WPA board and GPS treat WPA homeowner complaints as some kind of ***popularity contest***.

> Emails available in evidence package.

Legal Analysis:

> *As of 2026, Florida HOAs with 100 or more parcels must maintain a website containing specific records, including contracts for services (like landscaping). Failure to post this, as outlined in Florida Statute § 720.303, is a violation. Residents can demand records in writing, and if not provided, pursue remedies through pre-suit mediation.*

> (Source: Google AI)

> **Note:** The WPA, with 98 parcels, falls 2 shy of the 100 parcel requirement. Yet the WPA is a sub-HOA of a larger master HOA, CAPE HAZE WINDWARD POA, INC. Hence the website requirement.

> *Under modern contract law, a contract is an objective, legally binding exchange of promises, strictly governed by clear rules and statutes — **not** public opinion, subjective intentions, or a **popularity contest**.*

> (Source: Google AI)

LCS Cost

> The WPA contains 98 properties, composed of 85 homeowners and 13 vacant lot owners, with an annual assessment of:

1. 85 homeowners @ $2060
2. 13 vacant lot owners @ $420

> LCS breakdown:

1. Annual LCS cost: $116,831
2. Annual LCS cost per homeowner: $1,374.48

> Homeowner $2060 annual assessment breakdown:

1. 66% to LCS @ $1,374.48
2. 33% to WPA and GPS @ $685.52

> The above numbers were provided, with a few inconsistencies, by GPS.

> Emails available in evidence package.

LCS Services

> LCS (1) weighted value, (2) service and (3) definition:

1. 30% : mowing - mowing yards and vacant properties
2. 20% : edging - edging hard and soft curbing
3. 10% : trimming - trimming of culverts and yard artifacts
4. 3% : blowing - clearing of landscaping debris on driveways and walkways
5. 20% : pruning - pruning of shrubs and trees (frequency not detailed in 2026 contract)
6. 15% : irrigation - monthly and just-in-time maintenance of irrigation system
7. 1% : fertilizing - scheduled 4 times a year
8. 1% : pesticides - scheduled 4 times a year

> Median LCS Weighted Value: **15.5%** (rounded to **16%**)

> **Note:** Several reports, detailed below, mistakenly use the term, **trimming**, in lieu of the correct term, **pruning**.

LCS Property Damage

> The LCS routinely damages WPA homeowner property - in particular, driveways, plants, shrubs and trees. WPA homeowners often post signs in Spanish, asking the LCS to not prune or spray plants, shrubs and trees. This practice does not always work with the LCS, resulting in costly damage to said artifacts. And a few WPA homeowners bar the LCS from their property to do their own landscaping.

> Reported property damage incidents inflicted upon this homeowner:

1. 2024.3.24 - Driveway damage, repaired by LMP on 2024.3.26.
2. 2024.5.29 - Driveway damage, repaired by homeowner.
3. 2025.4.14 - Driveway damage, repaired by homeowner.
4. 2025.7.29 - Driveway damage, repaired by homeowner. Invoiced GPS (invoice.2025.7.29-1).

5. 2025.10.17 - Driveway damage, repaired by homeowner. Invoiced GPS (invoice.2025.10.17-1).
6. 2026.5.5 - Driveway damage, repaired by homeowner.
7. 2026.5.7 - Driveway damage, repaired by homeowner, complaint filed with Charlotte County police (case number: **2605-004810**), who chose to treat the case as a civil offense in lieu of a criminal offense of vandalism. Out of 85 homes, only this homeowner's driveway was damaged.
8. 2026.5.19 - Driveway damage, repaired by homeowner.

> The WPA board and GPS ignored this homeowner's legal invoices. Moreover, the LCS continues to damage this homeowner's driveway.

Legal Analysis:

> *In Florida, if an HOA's landscaping crew causes damage to a homeowner's property, the responsibility for reimbursement generally falls on the HOA, not the individual homeowner, even if the damage was caused by a contractor hired by the HOA. The HOA shares responsibility because it is in "privity" with the landscaper through their contract. The homeowner should document the damage with clear photos and notify the HOA in writing. The HOA is then obligated to arrange for the landscaper to fix the issue. If the landscaper refuses to take responsibility, the HOA must proceed with the repairs at its own expense and can later seek reimbursement from the contractor.*

> (Source: Google AI)

> Emails and invoices available in evidence package.

LCS Reports

> LCS ***performance*** reports, detailing (1) pass/fail; (2) date; (3) this homeowner's weighted value; (4) details

1. Fail : 2025.5.29 : 20% : property damage
2. Fail : 2025.6.5 : 20% : WPA pruning
3. Fail : 2025.6.11 : 60% : LCS does not have a trimmer role for culverts and lawn artifacts
4. Fail : 2025.6.25 : 20% : WPA pruning
5. Fail : 2025.6.30 : 30% : property damage, WPA pruning, trimming
6. Fail : 2025.7.9 : 30% : WPA pruning, trimming
7. Fail : 2025.7.14 : 40% : property damage, WPA trimming, mowing
8. Fail : 2025.7.23 : 0% : WPA mowing, trimming
9. **Pass** : 2025.7.29 : 0%
10. Fail : 2025.8.6 : 30% : WPA trimming, mowing
11. Fail : 2025.8.13 : 0% : WPA trimming, mowing
12. Fail : 2025.8.20 : 20% : WPA edging, mowing
13. Fail : 2025.8.29 : 30% : WPA mowing, edging, trimming due to heavy rains
14. Fail : 2025.9.3 : 20% : WPA pruning (no photos)
15. Fail : 2025.9.9 : 20% : WPA mowing, trimming due to heavy rains
16. Fail : 2025.9.16 : 40% : WPA pruning (part 2 of report mislabeled as 2025.8.16)
17. Fail : 2025.9.23 : 20% : property damage, WPA edging
18. Fail : 2025.9.30 : 0% : WPA edging
19. Fail : 2025.10.7 : 50% : property damage, WPA mowing, edging (report mislabeled 2025.9.7)
20. Fail : 2025.10.14 : 20% : property damage, WPA edging, pruning

21. Fail : 2025.10.21 : 20%
22. **Pass** : 2025.10.28 : 0%
23. **Pass** : 2025.11.3 : 0% : WPA pruning of plant/tree tops needs to be addressed
24. Fail : 2025.11.17 : 0% : WPA edging
25. Fail : 2025.11.18 - 2026.2.5 : 20% : WPA edging, pruning (unstructured reporting period)
26. Fail : 2026.2.10 : 20% : WPA edging
27. Fail : 2026.2.24 : 20% : WPA edging
28. Fail : 2026.3.10 : 30% : WPA edging, trimming
29. Fail : 2026.3.18 : 30% : issues with GPS work orders; edging, culverts resolved (unstructured reporting period)
30. Fail : 2026.3.24 : 0% : WPA mowing, edging, trimming (unstructured reporting period)
31. Fail : 2026.3.31 : 50% : WPA mowing, edging
32. Fail : 2026.4.9 : 50% : WPA mowing, edging; contract pruning frequency undefined
33. Fail : 2026.4.14 : 50% : WPA mowing, edging; contract pruning frequency undefined
34. Fail : 2026.4.21 : 70% : WPA mowing, edging, pruning; contract pruning frequency undefined
35. Fail : 2026.4.28 : 43% : WPA edging, pruning; contract pruning frequency undefined
36. Fail : 2026.5.5 : 53% : property damage, WPA edging, trimming, pruning; contract pruning frequency undefined
37. Fail : 2026.5.12 : 20% : WPA edging, pruning, trimming; contract pruning frequency undefined
38. Fail : 2026.5.19 : 20% : property damage, WPA edging, pruning, trimming; contract pruning frequency undefined
39. Fail : 2026.5.26 : 20% : WPA edging; contract pruning frequency undefined
40. Fail : The LCS continues to fail and damage property. Micro-management of LCS workers is still required to get fundamental LCS tasks completed.

- Annual This Homeowner's Average LCS Weighted Value (986 / 39): **25%**
- Annual This Homeowner's Median LCS Weighted Value (0 - 70): **35%**
- Annual LCS Pass Rate: **8%**
- Annual LCS Fail Rate: **92%**

> Detailed reports, with photos, available in evidence package.

Financial Fraud

> The following calculations are based on the above 39 LCS reports, detailing material breaches of contract with the WPA and its homeowners. It is a rough estimate based on the **Median LCS Weighted Value** of **16%**. The true ***financial fraud*** rate is likely much higher; but would require a detailed report for each of the 85 homeowners.

> As it relates to this homeowner, the ***average weighted value*** is ***25%***, with a ***median weighted value*** of ***35%***. See calculations below.

- (Homeowner Annual LCS Cost * Annual LCS Fail Rate) * Median LCS Weighted Value = Homeowner Annual LCS Material Breach Cost
- ($1,374.48 * .92) * .16 = **$202.32**
- ($1,374.48 * .92) * .25 = **$316.13** (using this homeowner's average weighted value)

- ($1,374.48 * .92) * .35 = **$442.58** (using this homeowner's median weighted value)
- Homeowner Annual LCS Material Breach Cost * Total Homeowners = Annual LCS Material Breach Cost
- $202.32 * 85 = **$17,197.20**
- $316.13 * 85 = **$26,871.05** (using this homeowner's annual average LCS material breach cost)
- $442.58 * 85 = **$37,619.30** (using this homeowner's annual median LCS material breach cost)
- Annual LCS Material Breach Cost * Juniper Contract Duration in Years = To Date LCS Material Breach Cost
- $17,197.20 * 2.5 = **$42,993.00**
- $26,871.05 * 2.5 = **$67,177.63**
- $37,619.30 * 2.5 = **$94,048.25**

> In other words, **85** WPA homeowners are being ***financially defrauded*** within a ***range*** of: **$17,197.20 to $37,619.30** in ***estimated*** LCS material breach costs for contractual LCS services not rendered on an annual basis. The current LCS vendor, Juniper, has been under contract with the WPA since January 2024. To date, the ***estimated*** amount of ***financial fraud*** falls within a ***range*** of: **$42,993 to $94,048.25**.

Analysis

> **1. The WPA board is in constant *breach of its fiduciary duty* to WPA homeowners**.

Legal Analysis:

> *Florida HOA board members breaching fiduciary duty face serious penalties, including personal liability for financial losses, removal from office, and **potentially criminal charges for fraud** or self-dealing. While Florida law provides qualified immunity for good-faith decisions, this protection is lost if directors act in bad faith, with reckless disregard, or **engage in criminal acts**.*

> (Source: Google AI)

> Since 2024/Q1 the WPA board has knowingly been in breach of its fiduciary duty as it relates to the **Contracts** section. The WPA board and GPS were formally notified, in writing, of the unsatisfactory LCS at a WPA budget meeting on 2024.11.12. See:

1. 2024 LCS Budget Statement
2. 2024 LCS Budget Email

> Statement and email available in evidence package.

> A plea, via the above hand-delivered letter and follow-up email, to correct the unsatisfactory LCS, by implementing a LCS system of accountability, was ignored by the WPA board and GPS.

> Hence, the results of the **LCS Reports** section, which details the WPA board's unending breach of fiduciary duty over the past year, evidenced by the LCS 92% ***fail*** rate.

> It's also worth noting the WPA board and GPS, on 2024.11.12, were notified the LCS employed illegal aliens - a common fact known to WPA homeowners for years.

Legal Analysis:

> *Hiring a lawn care service while knowingly employing undocumented workers carries significant legal risks for a Florida Homeowners Association (HOA) and the vendor, primarily due to SB 1718 (effective 2023.7.1) and other state labor laws.*

> (Source: Google AI)

> **2. The WPA board is constantly *financially defrauding* WPA homeowners.**

Legal Analysis:

> *In Florida, financial fraud involving a vendor contract in a homeowners' association (HOA) can occur through kickbacks, billing schemes, or undisclosed conflicts of interest. These fraudulent acts are often accompanied by a breach of the vendor contract and a breach of the HOA board members' fiduciary duty to the community.*

> (Source: Google AI)

> **Types of Financial Fraud Involving Vendors:**

- **Vendor Kickbacks:** A corrupt board member or manager accepts a bribe from a vendor in exchange for awarding them a contract. The vendor then inflates the cost of the contract, splitting the excess profits with the board member. Recent Florida law has made kickbacks related to fines a third-degree felony.
- **Fictitious or "ghost" Vendors:** An HOA insider creates fake companies and funnels association funds to these entities through fraudulent invoices for services that were never performed.
- **Conflicts of Interest:** A board member awards a lucrative contract to a company they own or have a financial interest in, without proper disclosure to the rest of the board. Florida law strictly prohibits board members from soliciting or accepting anything of value from vendors for which no consideration has been given.
- **overwilling or Non-performance:** A vendor bills the association for more hours or a higher level of work than was actually completed. In other cases, ***a vendor is paid for services that were never rendered***.

> (Source: Google AI)

> The **Overbilling or Non-performance** section is key. Because it's been well established the LCS has been in ***material breach*** of contract 92% of the time over the past year with the knowledge and consent of the WPA board and GPS.

> **Note**: WPA homeowners are legally required to pay all scheduled HOA fees, to include embedded LCS fees - in spite of a continuing partial rendering of contractually obligated lawn care services.

> *Under Florida law, financial crimes and corruption carry strict penalties:*

1. **Third-Degree Felony:** Applies to fraud, embezzlement, or kickbacks involving between $750 and $20,000. This is punishable by up to 5 years in prison and a $5,000 fine.

2. **Second-Degree Felony:** Applies to fraud involving between $20,000 and $50,000. This is punishable by up to 15 years in prison and a $10,000 fine.
3. **First-Degree Felony:** Applies to organized fraud or theft of $50,000 or more. This carries penalties of up to 30 years in prison and a $10,000 fine.

> But do these penalties apply in a civil court? Research suggests not. Instead, a prosecutor must file separate criminal charges.

Solutions

> Solutions for WPA homeowners include:

1. Maintain the status quo, allowing the WPA board, GPS and Juniper to continue financially defrauding WPA homeowners.
2. Remove the WPA board, fire Juniper and GPS; elect a new board, hire a new LCS and PMC.
3. Remove the WPA board, fire Juniper and GPS; elect a new board, hire a CPA to administrate the WPA and require WPA homeowners to hire their own LCS.
4. Remove the WPA board, fire Juniper and GPS; elect a new board, hire a new PMC, and allow homeowners to grow any kind of grass - to include Florida-friendly landscaping.
5. Legally dissolve the WPA.
6. File a civil lawsuit against the WPA and GPS. Pre-suit mediation is not required in the case of financial fraud.
7. Report WPA and GPS illegal activities to local and/or state law enforcement entities, which are legally obligated to investigate illegal HOA activities.
8. Merge the sub-HOA, WPA, with the master-HOA,Cape Haze Windward POA, Inc.; remove Juniper; remove GPS; and self-manage the newly merged HOA with accounting, legal and general services as required. The newly merged HOA will require all homeowners to manage their own lawn care; as the current master-HOA does today.

Legal Analysis:

> *Florida law enforcement is required to investigate actual criminal activity within a HOA, such as fraud, theft, or embezzlement. However, police do not handle civil disputes or covenant enforcement. Recent laws (e.g., HB 1203 and HB 919) have increased criminal penalties for board members regarding record tampering, forgery, and election fraud, forcing HOAs to comply with law enforcement subpoenas within 5 days. If local law enforcement is unresponsive, you can report fraud to the Florida Attorney General's office.*

> (Source: Google AI)

Florida House Bill 657 (2026)

> House Bill 657 (HB 657) was overwhelming ***passed*** by the Florida House, on March 5th, by a vote of 108 to 2. Yet it was allowed to ***die***, on March 13th, in the Senate Rules Committee, a strong sign the classic ***one-house-bill***, or ***pass-and-die***, political strategy was employed. HB 657 included:

> **Overview** is a comprehensive 2026 legislative proposal that creates a structured legal process for homeowners to dissolve a homeowners' association (HOA), streamlines community association dispute resolution, and establishes specialized court programs.

> **HOA Termination Pathway:** Establishes a formal statutory process allowing communities to dissolve an HOA. A petition signed by a specified percentage of owners (such as 20%) can trigger a mandatory meeting, requiring a two-thirds supermajority vote of all voting interests to approve a plan of termination.

> **Termination Trustees:** Introduces a designated trustee role responsible for paying lawful debts, winding down operations, and distributing remaining assets fairly to property owners after an HOA dissolves.

> **Community Association Court Program:** Authorizes Florida circuit courts to create dedicated court programs specifically handling condo and HOA disputes to reduce costs and delays compared to general civil courts.

> **Removal of Pre-suit Mediation:** Eliminates the statutory requirement for mandatory pre-suit mediation, allowing disputes to proceed directly to arbitration or the new community association court system.

> **Governing Documents and Rules:** Requires associations to update governing documents with specific state-mandated disclosures and places restrictions on imposing strict, uniform roof material requirements if existing roofs meet standard building criteria.

> **Board Accountability:** Prohibits association boards from misusing funds to campaign against termination or unfairly blocking homeowner-requested meetings and records.

> Florida is often regarded as the leading HOA fraud state in the country. And HB 657 would have helped HOA homeowners more readily fight HOA fraud.

Action

1. Filed report and supporting material with Englewood Sheriff's office.
2. Filed report and supporting material with Charlotte County Economic Crimes Unit.
3. Filed report with the Local State Attorney's Office in Punta Gorda.
4. Filed report with Florida Attorney General in Tallahassee.
5. File report with Florida Representative, Danny Nix Jr (after election on November 3rd).

Action Outcomes

1. 2026-6-5,9:30AM - Attempted to present this report and supporting material to the Englewood Sheriff's office. Asked to speak with a detective; but was presented with a deputy. While the deputy understood HOA fundamentals, he was unable or unwilling to grasp the nuance of the above section: **2. The WPA board is constantly *financially defrauding* WPA homeowners**. Local law enforcement appears to have a standard policy of viewing such criminal offenses as civil offenses, likely due to perceived civil liability risks. Case number: **2606-002834**
2. 2026-6-5,12:40PM - An officer from the Charlotte County Economic Crimes Unit explained even though this case of ***financial fraud*** may rise to the level of a ***felony***, it's still a ***civil*** offense that must be resolved in a court of law.
3. 2026-6-15,8:43AM - Local State Attorney's Office in Punta Gorda received my report via certified mail (Tracking: 9589 0710 5270 3575 8454 62, Receipt: 9590 9402 9932 5335 2338 03). ***No response to date***.

4. 2026-7-27,8:50AM - Florida Attorney General received my report via certified mail (Tracking: 9589 0710 5270 3575 8482 34, Receipt: 9590 9402 0142 6110 8448 89). ***No response to date***.
5. ***Pending***.

Legal Analysis:

> *Frontline law enforcement officers are trained to handle physical crimes, not the complex paper trails, corporate governance disputes, and fiduciary duties involved in HOA fraud. Local police will frequently dismiss these cases as "civil matters" simply because they lack the time, resources, or specialized financial training to decipher them.*

> (Source: Google AI)

> *When local police and district courts ignore your HOA financial fraud report, it is usually because they view the dispute as a **civil** matter rather than a **criminal** one. To compel an investigation or legal action, you must elevate your evidence to agencies with jurisdiction over financial crimes or licensed professionals.*

> (Source: Google AI)

> *The Florida Attorney General's Office often appears to "ignore" or decline action on HOA financial fraud reports because the Attorney General and state administrative agencies have very limited direct regulatory or criminal jurisdiction over private Homeowners Associations.*

> *Financial mismanagement, budget disputes, or failure to produce records are often treated as civil contract disputes between homeowners and the private board, requiring a private civil lawsuit rather than state criminal prosecution — unless explicit, provable criminal grand theft or systemic embezzlement occurs.*

> (Source: Google AI)

Summary

> Clearly, Florida law enforcement ***will not*** respond to HOA financial fraud complaints from HOA homeowners - as the above ***actions*** and ***action outcomes*** attest to.

> Instead, HOA homeowners ***must*** file a civil lawsuit in an effort to force Florida law enforcement to enforce Florida law as it pertains to HOA financial fraud. Note, pre-suit mediation ***is not*** required.

> To the HOA homeowner, Florida law appears to be ***constantly*** fluid, full of contradictions and open to interpretation.

> In other words, the Florida legal system is a ***racket*** - to paraphrase a famous quote by Marine Corp General, Smedley D. Butler (1933, 1935).

Evidence Package

> A USB flash drive containing contracts, emails, invoices, notes, photos and reports, available upon request and approval.

> Email ***capehaze@runbox.com*** for an evidence appointment. At the appointed date and time, provide a 2+ GB FAT32 USB 2.0/3.0 compliant flash drive. It will require a few hours to create the

> evidence flash drive, at which time you will be notified and arrange for a pickup date and time.